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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
18/533,053	12/07/2023	Alain FAVIER	9693	4102

6858 7590 07/28/2025

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EXAMINER	
LEWIS, JUSTIN V	

ART UNIT	PAPER NUMBER
3637	

MAIL DATE	DELIVERY MODE
07/28/2025	PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No. 18/533,053	Applicant(s) FAVIER, Alain	
	Examiner JUSTIN V LEWIS	Art Unit 3637	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 07 December 2023.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-12 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-12 is/are rejected.

8) ☐ Claim(s) _____ is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 01 February 2024 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date see attached.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

1. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Allowable Subject Matter

2. Claims 2-8 and 10 are objected to as being dependent upon a rejected base claim, but would be allowable if rewritten in independent form including all of the limitations of the base claim and any intervening claims.

3. The following is a statement of reasons for the indication of allowable subject matter: the aforementioned claims set forth a series of physical structures/configurations that are well beyond that which is disclosed within the Roseman and Anderson references (discussed in greater depth infra), which represents the prior art combination closest to Applicant's claimed invention, and there would be no obvious reason to modify Roseman and Anderson to the extent necessary to satisfy each of Applicant's pertinent limitations (specifically with regard to the claimed combinations of constituent materials and functional capabilities thereof), as such modifications would be likely to render the Roseman and Anderson assemblies incapable of continuing to operate/behave in the particular manners set forth within the references themselves (given the particularly sensitive nature of such tamper-proof label assemblies), which would be strongly indicative of an application of improper hindsight reasoning.

4. Claims 2-8 and 10 would be allowable if rewritten to overcome the rejections under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), 2nd paragraph, set forth in this Office action and to include all of the limitations of the base claim and any intervening claims.

Claim Rejections - 35 USC § 112

5. The following is a quotation of 35 U.S.C. 112(b):

> (b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:

> The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

6. Claims 1-12 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor (or for applications subject to pre-AIA 35 U.S.C. 112, the applicant), regards as the invention.

7. The claims 1-2 and 9 recitations of “EAS” and “RFID” are unclear, as it is unknown exactly what these recitations are intended to refer to. Exactly what structure/configuration is sought? Please review/revise/clarify.

8. The claims 1 and 9 recitations of “at least one tamper evident label attached to the EAS or RFID label” are unclear in view of the earlier recitations of “tamper evident label comprising… at least one EAS and/or RFID label”. Exactly what structure/configuration is sought? Please review/revise/clarify.

9. Claim 6 recites the limitation "the position pull-tag". There is insufficient antecedent basis for this limitation in the claim. Please review/revise/clarify.

10. There is insufficient antecedent basis for multiple limitations in the claims, including: i) claim 9 recites the limitation "the EAS or RFID label"; ii) claim 11 recites the limitation “the flexible adhesive transparent label”; and iii) claim 12 recites the limitations “the transferable adhesive”, “the second layer” and “the printed message and/or QR code”.

11. Claims 3-5, 7-8 and 10 are rejected as depending (directly or indirectly) from rejected independent claims 1 and 9.

Claim Rejections - 35 USC § 103

12. The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

13. Claims 1 and 9 are rejected under 35 U.S.C. 103 as being unpatentable over U.S. Patent Application Publication No. 2012/0280043 to Roseman ("Roseman").

Regarding claim 1, Roseman discloses a disposable (note that the anti-tamper label 14 may be disposed of anytime as desired) security and tamper evident (para. 10) label (e.g. anti-tamper label 14, as shown in figs. 1-2 and discussed at para. 21) comprising a flexible adhesive transparent (para. 11) layer (e.g. adhesive layer 22, as shown in fig. 2 and discussed at para. 21).

The Roseman embodiment shown in figs. 1-2 does not disclose at least one EAS and/or RFID label attached to the flexible adhesive transparent layer (22) and at least one tamper evident label (14) attached to the EAS or RFID label.

However, the embodiment shown in Roseman fig. 3 teaches the incorporation of a EAS and/or RFID label (e.g. functional device 30, as discussed at para. 24).

Accordingly, it would have been obvious to a person of ordinary skill in the art before the effective filing date to include an RFID or EAS-based functional device 30 in the anti-tamper label 14 of figs. 1-2, in order to provide the benefit of yielding a resultant more sophisticated assembly, less likely to be successfully counterfeited.

Regarding claim 9, Roseman discloses a disposable (note that the anti-tamper label 14 may be disposed of anytime as desired) security and tamper evident (para. 10) label (e.g. anti-tamper label 14,

as shown in figs. 1-2 and discussed at para. 21) comprising a flexible adhesive transparent (para. 11) layer (e.g. adhesive layer 22, as shown in fig. 2 and discussed at para. 21) and at least one tamper evident label (note that anti-tamper label 14 is a tamper evident label) attached to the EAS or RFID label.

The Roseman embodiment shown in figs. 1-2 does not disclose a EAS or RFID label. However, the embodiment shown in Roseman fig. 3 teaches the incorporation of a EAS and/or RFID label (e.g. functional device 30, as discussed at para. 24).

For the reasons set forth in the rejection of claim 1, supra, it would have been obvious to include an RFID or EAS-based functional device 30 in the anti-tamper label 14 of figs. 1-2.

14. Claims 11-12 are rejected under 35 U.S.C. 103 as being unpatentable over Roseman in view of U.S. Patent Application Publication No. 2009/0315317 to Anderson ("Anderson").

Regarding claim 11, Roseman discloses the disposable security and tamper evident label of claim 9 but does not disclose wherein the flexible adhesive transparent label (14) includes a positioning pull-tag with pre-cut area adapted to allow detachment of the pull-tag.

Anderson teaches the concept of providing a positioning pull-tag (e.g. lifting tabs 112 and 114, as shown in fig. 1 and discussed at para. 21) with pre-cut area (e.g. separation lines 108 and 110, as shown in fig. 1 and discussed at para. 21) adapted to allow detachment (para. 5) of the pull-tag (112 and 114).

Given that Roseman mentions the Anderson reference as an ostensible source of additional features (para. 5), it would have been obvious to a person of ordinary skill in the art before the effective filing date to incorporate the Anderson pull tab teachings into the Roseman structure as desired, in order to provide the benefit of yielding a resultant more sophisticated label assembly, less likely to be successfully counterfeited.

Regarding claim 12, Roseman discloses the disposable security and tamper evident label of claim 11 wherein the transferable adhesive (see the rejection under 35 USC 112 set forth supra) is adapted to

adhere to a product and fuse to a substrate of the product to permanently adhere at least the second layer (see the rejection under 35 USC 112 set forth supra) with the printed message and/or QR code (see the rejection under 35 USC 112 set forth supra) to the product.

Conclusion

15. Any inquiry concerning this communication or earlier communications from the examiner should be directed to JUSTIN V LEWIS whose telephone number is (571)270-5052. The examiner can normally be reached M-F 7:30AM-5:00PM.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Daniel J. Troy can be reached at (571) 270-3742. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

16. Information regarding the status of published or unpublished applications may be obtained from Patent Center. Unpublished application information in Patent Center is available to registered users. To file and manage patent submissions in Patent Center, visit: https://patentcenter.uspto.gov. Visit https://www.uspto.gov/patents/apply/patent-center for more information about Patent Center and https://www.uspto.gov/patents/docx for information about filing in DOCX format. For additional questions, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/JUSTIN V LEWIS/
Primary Examiner, Art Unit 3637